



Lee Kuan Yew
School of Public Policy

National University of Singapore



Regulatory Risks for Internet Companies

Pakistan, Vietnam, Indonesia, Singapore

Muhammad Saad
Ho Xian Xi Karen
Jiahui Tan

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EXECUTIVE SUMMARY

There is an increasing push by governments to put in place regulatory frameworks for internet governance. For Asia, including Indonesia, Pakistan, Singapore, and Vietnam, the trend has particularly picked up after 2015. In all four jurisdictions, governments have either imposed or are deliberating regulations on content moderation, data privacy and localisation, and cybersecurity.

Content moderation regulation is now a set feature of internet regulation and constitutes the highest risk for internet companies. Its impact ranges from compliance with governments' content removal directives that contravene with community guidelines, to punitive measures like platform bans or hefty fines for non-compliance. Conversely, data privacy and localisation is an emerging frontier. Apart from Singapore, all three of Indonesia, Pakistan, and Vietnam are currently deliberating data privacy laws. This area of internet governance also has a significant impact for companies' operations. Increased data localisation requirements are likely to increase operational costs, affect users' privacy and increase cybersecurity vulnerabilities. Moreover, cross-border transfer restrictions will increase data flow barriers. Although all four jurisdictions have regulations governing cybersecurity, they have varying interpretations on what constitutes cybersecurity. For example, Vietnam's cybersecurity law is primarily focused on content moderation and data localisation, whereas Pakistan's cybersecurity law is directed at cybercrimes. In this regard, Internet companies must manage the nuances within these jurisdictions and customize their respective engagement with the government agencies accordingly.

Overall, Pakistan and Vietnam pose the highest regulatory risk, driven by current laws related to content moderation, and upcoming ones for data privacy and localisation. These are followed by Indonesia, where the regulatory risks are posed by the content moderation laws. Although Singapore has in place regulations for all three areas of internet governance, it poses the least risk amongst all four jurisdictions for internet companies.

While the evolving regulatory landscape constitutes significant challenges for internet companies, they should not withdraw from any of these markets. Rather, they should adapt and reduce the risk, as all four jurisdictions hold significant potential for digital growth. For risk mitigation, internet companies should refine their government affairs and public policy strategy by positioning themselves as champions of digital growth. They should cultivate allies within governments who are sympathetic to reduced internet regulation as an inhibitor for the digital economy. These particularly include the relevant ministries of investment and communication. Moreover, companies should also invest in the digital infrastructure and ecosystem of each market to increase their entry points for influence and signal their long-term commitment. Where possible, companies can also leverage diplomatic pressure and engagement through international trade associations to push against increased regulatory pressure.

INTRODUCTION

The Internet has revolutionized the way we live, communicate, and do business. As it grows in importance, regulations around the world have increased sharply. The trend reflects governments' growing concerns of the impact internet companies, particularly content hosting platforms, have on national security, political stability, religious sentiments, and social harmony. These regulations have increased the risks of Internet companies, affecting their operations and growth prospects.

This report seeks to identify and evaluate the regulatory risks for Internet companies operating in Pakistan, Vietnam, Indonesia, and Singapore. Specifically, the areas of Internet regulations include content moderation, data privacy and localisation, and cybersecurity. We will consider the impact of these regulations on Internet companies with a focus on content hosting products and services. The report also outlines international developments that can potentially influence Internet regulations, and discusses the contagion effect of such developments in the South Asia and Southeast Asia regions.

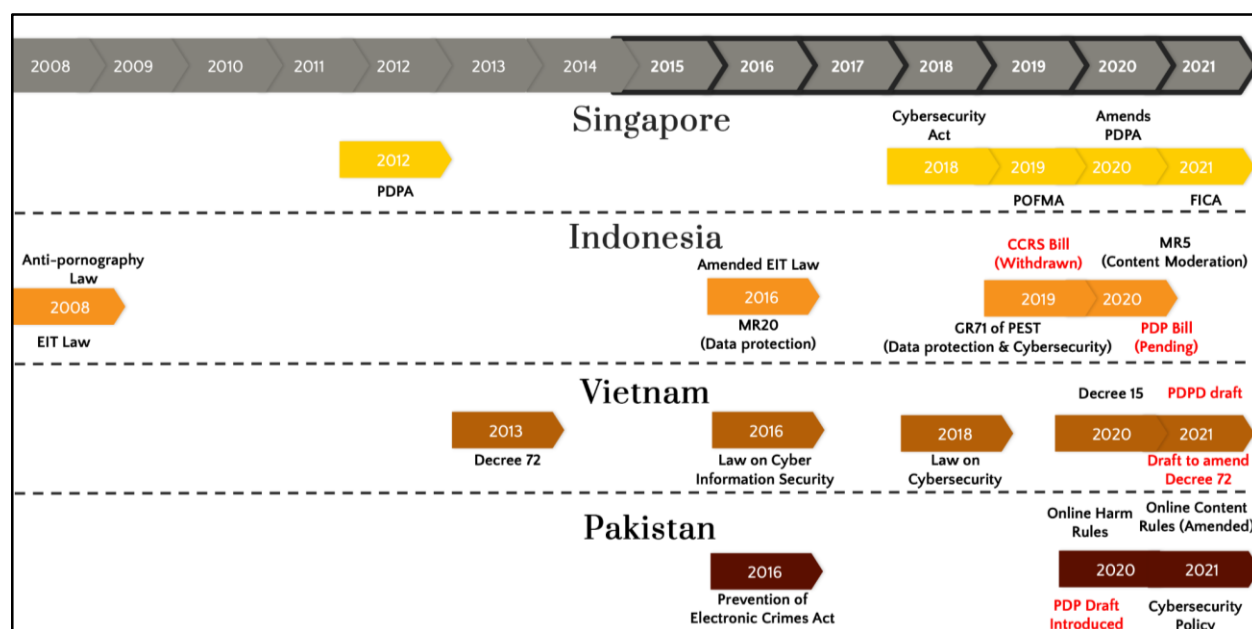


Figure 1: Increase in Internet regulations across all four jurisdictions after 2015

RESEARCH METHODOLOGY

The report uses public domain research consisting of (i) primary resources, such as case law, legislations, and government documents, and (ii) secondary resources, such as Internet companies' community guidelines and transparency reports, and submissions from trade and professional associations such as the Asia Internet Coalition (AIC) and The Software Alliance, among others.

To enhance the rigor of our analysis, we conducted in-depth interviews with a total of 16 key interviewees across the four jurisdictions. Of these, 80% of them are from the private sector, namely senior public policy professionals from Internet companies, the AIC, management consultants, lawyers, professionals from trade associations, business councils and international organizations, as well as academia. A number of these interviewees are locals and had experience in government agencies. 20% of the interviewees are senior government officers from Singapore and Pakistan. Based on their requests, the interviewees' responses are anonymized.

The interview questions were centered on three main themes, namely (i) the regulatory challenges for Internet companies, (ii) how Internet companies manage these challenges, and (iii) views on the digital economy development in Asia.

CURRENT REGULATORY LANDSCAPE & KEY DRIVERS FOR INTERNET REGULATIONS

The key regulations across the four jurisdictions are summarized in [Table 1](#), and further detailed in subsequent sections

	Content Moderation	Cybersecurity	Data Privacy and Localisation
Pakistan	✓	✓	Under consideration
Vietnam	✓	✓	✓
Indonesia	✓	Bill withdrawn in 2020	Under consideration
Singapore	✓	✓	Under consideration

Table 1: Existing Internet Laws for Four Jurisdictions

We found that the key drivers for Internet regulations are largely the same across the four countries, namely national security, political stability, religious sentiments, and social harmony (see [Table 2](#)). Religious sentiments are pertinent for content moderation laws in Indonesia and Pakistan because they are Muslim countries. In fact, there are repeated platform bans, including on YouTube, which can be specifically tied back to blasphemous content. For Pakistan's case, national security is usually defined by the military, including for internet regulation. As one of our interviewees, a senior government office from Pakistan revealed, *'There is no law on internet regulation that leaves the ministry before prior approval by the military intelligence agencies. In fact, the NTISB [National Telecommunication and Information Security Board] headed by a senior military official is the key player behind the scenes of what ends up on the Cabinet's agenda'*. As for Vietnam, social harmony and political stability are important as it is an authoritarian state. The regime in power has low tolerance for dissent as it prioritizes keeping the Communist Party of Vietnam in power. In Singapore, all four drivers are intertwined, as it is a multiracial and

multicultural country governed by one party. Here, racial and religious harmony are important for social cohesion.

	National Security	Political Stability	Religious Sentiments	Social Harmony
Pakistan	✓	✓	✓	X
Vietnam	✓	✓	X	✓
Indonesia	✓	✓	✓	X
Singapore	✓	✓	✓	✓

Table 2: Key Drivers for Internet Governance

These drivers are reflected in the number of content removal requests made by governments which have continued to increase from all four jurisdictions post-2015 (see [Figure 2](#)). The highest number of content removal requests are by the Pakistan government, followed by Vietnam, Indonesia, and Singapore. In Pakistan, majority of the removal requests are related to religious offence, hate speech and obscenity. In fact, Pakistan leads on content removal requests by a significant margin for other content hosting platforms as well, including for Twitter, TikTok and Facebook (see [Annex A](#)). For Vietnam, the content removal requests are predominantly related to government criticism, reflecting the regime's sensitivities to online criticism. In Indonesia, most content removal requests are miscellaneous, but also include a significant percentage related to hate speech and national security. In Singapore's case, most of the requests are related to bullying followed by privacy.

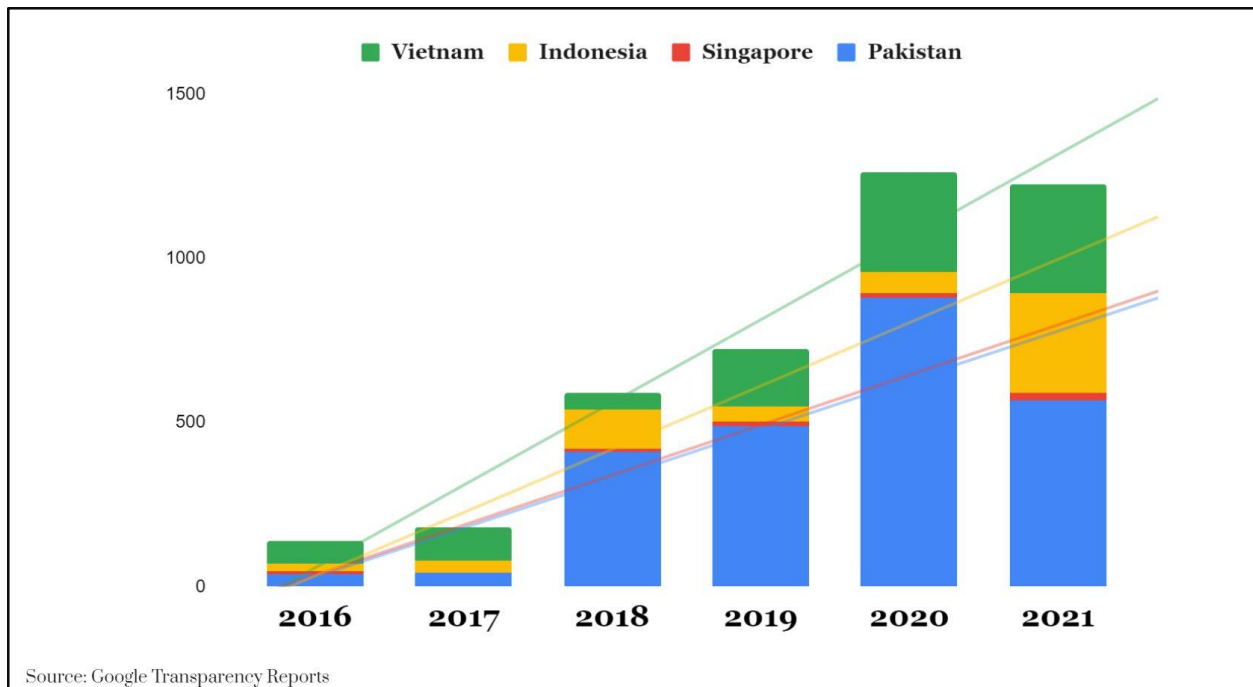


Figure 2: Content Removal Request 2015-2021

Pakistan

Pakistan's content moderation policy is governed by the **Removal and Blocking of Unlawful Online Content (Procedure, Oversight and Safeguards) Rules, 2021**, approved as recently as October 2021, and hereafter referred to as **Online Content Rules**. The Online Content Rules are developed under the Section 37 of the **Prevention of Electronic Crime Act, 2016 (PECA)**. PECA as the parent legislation gives the Pakistan Telecommunication Authority (PTA), the state regulator, broad powers to remove or block access to online information. Although the PTA *de jure* is a regulatory body, it is also a *de facto* policymaking body. This overreach in authority is due to the powers it possesses to interpret the broad restrictions on content violations. Moreover, the content removal requests by the PTA are not subject to judicial review. Its function therefore ranges from a judicial to an executive one, with little legislative or judicial oversight. The Online Content Rules first surfaced in 2020 after approval by the Federal Cabinet. However, given outcry by local digital rights organizations, as well as internet companies through the Asia Internet Coalition, the rules were withdrawn. Subsequently, the government formed a consultative committee led by Federal Minister for Human Rights, Ms. Shireen Mazari to finalize an updated version. The back-and-forth on the Online Content Rules shows the government's approach to

polycymaking for internet regulation in Pakistan. As one of our interviewees, a senior Pakistan government official said, *‘The government does not believe in conducting consultations prior to passing a law. Rather, the approach is to implement the law, gauge the reaction, and then make changes if needed’*. This approach to polycymaking carries high risk for internet companies by creating an environment of operational uncertainty. Moreover, content moderation will grow as an area of priority for the Pakistan government as other sources of news, particularly print and electronic media face increasing censorship. Since 2018, several journalists have started YouTube accounts, which the government cannot regulate, adding to its frustration.

Pakistan’s cybersecurity law is the **Prevention of Electronic Crimes Act 2016 (PECA)**. The law, originally promulgated as an ordinance, was enacted by the previous government after significant back-and-forth with Internet companies to also grant intermediary liability protection. The key driver behind the law is national security. It was drafted as part of the National Action Plan, an anti-terrorism policy that was adopted after December 2014 Army Public School Peshawar terrorist attack. PECA amalgamates cyber offences and content regulation within the same framework. More recently, the government also launched the **National Cybersecurity Policy 2021**, indicating that this regulatory agenda will likely gain pace over the next few years in Pakistan. However, the new policy does not have a significant impact for internet service providers, and only mentions collaboration to protect against malware attacks.

Although Pakistan does not currently have a governing legislation on data privacy and localisation, a draft law, called the **Personal Data Protection Bill 2020 (PDPB)** is currently under consideration by the Parliament. The bill is primarily concerned with sovereign control over data. It is based on Pakistan’s constitution, which explicitly recognizes the right to privacy. Article 14 of states that *‘the dignity of man and, subject to law, the privacy of home, shall be inviolable’*. The bill has received several industry wide comments by Internet companies and local digital rights organizations. It is currently under deliberation by a committee led by the President. Our interviewees revealed that the bill will likely go through a protracted parliamentary approval process, with several entry points for internet companies to influence its final shape.

Vietnam

Vietnam has several laws for content moderation firmly in place, which highlights it is a priority area. These laws are driven by surveillance and enforcement motivations to protect social order and the communist party's power. In 2013, **Decree 72** prohibited social media websites from publishing material that opposes the Vietnamese government or harms national security. Content restriction requests sent by the authorities to technology companies are routinely based on Article 5 of Decree 72. The **Law on Cybersecurity in 2018** gave powers to the Ministry of Information and Communications and the cybersecurity agency under the Ministry of Public Security to request service providers remove broadly defined offensive content including those harming national security. In 2020, **Decree 15** provided for administrative offences for Internet service providers for vaguely defined offenses such as creating and disseminating fake news and information that damaged moral or social values. Decree 72 is currently being amended to tighten control over social network service providers such as Facebook and YouTube with livestreaming activities. Apart from regulations, the government also has a 10,000-strong Internet taskforce (Force 47) and established a web monitoring unit to monitor online information.

Data privacy and protection laws are being drafted by the government and expected to be effective by end-2021. The draft **Personal Data Protection Decree (PDPD)** is the first data protection regulation for Vietnam and drawn from international examples like the European Union's General Data Protection Regulation (GDPR). The draft decree applies to organizations involved in handling and processing personal data and sets out principles of data protection. Crucially, the PDPD proposes to restrict cross-border transfer of personal data.

Data localisation requirements appear in several regulations, although the implementation is currently unclear. Under Decree 72, foreign Internet companies are required to keep at least one local server inside Vietnam, but it did not have clear enforcement guidelines. Moreover, Decree 15 reinforces the obligation to operate a server in Vietnam to provide information to the authorities when required. The 2018 Law on Cybersecurity stipulated offshore companies to

store personal data in Vietnam for a period to be specified by the Government and to establish a local office for operations. However, the law is lacking in implementing decree three years on. Understandably, the law has not been implemented as it met with significant opposition from Internet companies who are currently lobbying and petitioning on this issue. For example, the AIC submitted comments on the Draft Decree that data localization will dampen the foreign investment climate and “*significantly damage the country’s economic growth prospects*”. Hence, the government has yet to elaborate on the implementation details. As one interviewee described, “*the government went back to the drawing board again, so we still don’t really have sight of what the update is on the implementing decree on the Law on Cybersecurity*”.

On cybersecurity, countries have different focuses. Vietnam’s cybersecurity regulations, as reflected in the Law on Cybersecurity, primarily view national security with cybersecurity. Data localisation and content moderation requirements feature in this law, as the Ministry of Public Security (MPS) officials believe that local data storage is crucial to combat cybercrimes. Meanwhile, the **Law on Cyber Information Security (2016)** focuses more on conventional norms of protecting critical infrastructure, although regulatory enforcement is weak.

Indonesia

For content moderation, the Indonesian government has implemented several laws, such as the (i) **Electronic Information and Transaction Law (EIT)**, and (ii) **Anti-Pornography Law**, to regulate content on the Internet, particularly for pornographic and anti-Islamic online content. EIT was first introduced in 2008 to provide guidelines on prohibited online content, and since then there have been several amendments. In particular, the Ministry of Communication and Informatics (MCI) had in November 2020, issued a **Ministerial Regulation 5 (MR5)** which required all online service providers, including social media and digital marketplaces, to remove or block content on their platforms at the government’s request. MR5 is applicable for all private electronic system operators, including Indonesian companies and international Internet companies that collect and analyze data from users within Indonesia.

There is **no consolidated cybersecurity law in Indonesia**. A cybersecurity bill was withdrawn from parliament agenda in 2020, as it contained provisions that were overly cumbersome and costly for businesses, requiring certifications and accreditations. To-date, there is no update on the status of the revised cybersecurity bill. The legal basis for regulating cybersecurity in Indonesia is the EIT and its revised version (Law No. 19/2016). EIT covers several offences, such as distributing illegal content, breach of data protection, unauthorized access to another computer system to gain information, and an illegal and unauthorized interception or wiretapping of other computer systems or electronic systems. While EIT provides legal protection for content of electronic systems and electronic transactions, it does not cover important aspects of cybersecurity such as information and network infrastructure and human resources with expertise in cybersecurity.

There is no general data privacy and localisation law in Indonesia currently, although there are various laws stipulating data privacy requirements for electronic systems¹. That said, the Indonesian government is currently discussing a draft of the Personal Data Protection Act, and the bill is set to pass in end-2021. The **Personal Data Protection bill** is largely based on the GDPR, with nearly the same data subject rights and personal data processing regulations. The bill will be a comprehensive law that specifically deals with the protection of data in the control of a private data controller. It regulates various types of personal data, stakeholders' rights and obligations, processing and transferring of data, appointment of data protection officer, dispute resolutions, and administrative and criminal sanctions.

Singapore

Singapore currently has two legislations that deal with content moderation. Firstly, the **Protection from Online Falsehoods and Manipulation Act (POFMA) 2019**, which aims to counter online falsehoods through a variety of directions that can be passed by the government. Unlike other countries such as Vietnam or Indonesia, which are focused on law enforcement access and surveillance, the law takes a broad definition of public interest. It defines falsehoods within

¹ Law No. 11 of 2008 on Electronic Information and Transaction as amended by Law No. 19 of 2016, Government Regulation No. 71 of 2019 on Administration of Electronic Transaction and System, Minister of Communication and Informatics Regulation No. 5 of 2020 on Private Electronic System Providers, and Minister of Communication and Informatics Regulation No. 20 of 2016 on Personal Data Protection on Electronic System.

Singapore's concerns of public security, health protection, finances, and tranquility, in addition to relationships with other countries, political engineering, and maintenance of social harmony. Within this context, it acts against promotion of falsehood and online avenues that facilitate it. The second law is the **Foreign Interference (Countermeasures) Act 2021 (FICA)**. The law allows authorities to compel Internet service providers and social-media platforms to reveal user information, block content and remove apps deemed hostile to the city state's interests. Based on the law, enforcement authorities can take aim at groups and individuals (named as politically significant persons) and demand the source of foreign funding and other details.

There is a general data privacy and localisation law in Singapore, namely the **Personal Data Protection Act 2012 (PDPA)**. It governs the collection, use, and disclosure of individuals' personal data by organizations for purposes deemed appropriate. Since the introduction of PDPA in 2012, several amendments were made in 2020, most of them effective as of 1 February 2021. The key amendments are mandatory data breach notifications, new business-friendly exceptions for consent, new data portability requirements, and enhanced financial penalties, which increase compliance responsibilities for internet companies.

The Singapore government sees cybersecurity as the necessary foundation for a successful digital economy. The country faces increased cyber incidents including a high-profile cyber-attack on healthcare group SingHealth's database in 2018 where personal information of 1.5 million people, including the Prime Minister, was stolen. Following which, the **Cybersecurity Act** came into force on 31 August 2018. The Act establishes a legal framework for the oversight and maintenance of routine and proactive protection of critical information infrastructure (CII) which includes information communication and media in Singapore. Meanwhile, **Section 15A of the Computer Misuse and Cybersecurity Act (CMCA)** was expanded in 2017 to tackle cybercrimes.

RISK ASSESSMENT

As part of our analysis, we developed a Regulatory Provisions Index comprising 28 indicators across the three aspects of Internet governance to assess the impact of current and upcoming regulations (see [Annex B](#)). We found that Pakistan has the highest number of unfavorable regulatory provisions, followed by Vietnam, Indonesia, and Singapore.

Based on the regulatory provisions, we also developed the risk matrix assessment based on two indicators of an event's impact and likelihood (see [Annex C](#)). Impact is measured based on how severe or onerous the existing regulations pose to Internet companies' operations. Likelihood is measured based on past government actions, for instance how likely it is that the government will take enforcement actions against the company, as well as the status of the regulations, i.e. how likely it is that the law will be passed or implemented.

A summary of the risk matrix assessment for the three aspects of Internet governance across four jurisdictions is indicated in [Table 3](#). The details of the assessment for each country are appended in [Annex D](#).

	Pakistan	Vietnam	Indonesia	Singapore
Content Moderation	High	High	High	Moderate
Data Privacy and Localisation	High	High	Moderate	Low
Cybersecurity	Low	Low	Moderate	Moderate

Table 3: Summary of Risk Matrix Assessment for all Jurisdictions

Two points particularly stand out:

- (a) Content moderation, and data privacy and localisation pose the highest risk for internet companies.** In Asia, we observed that the regime's political stability often takes precedence over democratic freedoms and consultative processes. Thus, most governments view content moderation as a top priority to stem dissent and fake news, and in some cases even crack down on political dissent, which creates problems for internet companies. Data privacy and localisation is an emerging frontier in Asia. Asia is fast becoming an environment where data is protected with greater care and there are mandatory data breach notifications, akin to Europe's GDPR regulations. Upcoming data laws in Pakistan, Indonesia, and Vietnam are increasing the level of protection for data subjects, and this poses high to moderate risks for Internet companies operating in these countries. Content hosting platforms in particular will need to assess the impact of these changes on their operations and take steps to ensure compliance.

- (b) **Cybersecurity poses the lowest risk across jurisdictions.** In reality, the cybersecurity landscape is still evolving. The focus of each country's cybersecurity law depends on its interpretations and priorities. Past cases have shown that the penalties for cybersecurity breaches are relatively few and are mostly directed towards users rather than internet companies. In the case of Indonesia, one of our interviewees shared that the government only intends to introduce a cybersecurity bill after the data privacy and localisation bill has been passed, indicating the decreased level of priority.

The evolving regulatory landscape and risks present significant implications. It increases cost and complexity for internet companies, while reducing jurisdictions' attractiveness as a business destination. The licensing and administrative requirements also create new barriers to entry. Overall, the uncertainty on these developments may restrict internet companies to expand operations, and in some cases, even exit the markets impeding growth of the digital economy.

Pakistan

The key implications of the regulatory landscape for Internet companies operating in Pakistan include:

- (a) Reputational concerns due to compliance with wide-ranging and high volume content moderation directives that may contravene community guidelines on freedom of speech
- (b) Local taxation and liability of local staff, if appointed within country, to criminal proceedings in case of non-compliance
- (c) Increase in data processing and storage costs due to requirement to process particular data within Pakistan. Moreover, data of Pakistani citizens, even if residing abroad, would need to be processed according to the data protection regime.
- (d) Users' privacy concerns given requirements to provide decrypted data to trace origin of particular kinds of content.
- (e) Hefty fines and possible platform suspension due to non-compliance.

Under Online Content Rules, content hosting platforms are obliged to block or remove posts deemed objectionable by the government within 48 hours under regular circumstances, and 12 hours for emergency requests. Moreover, the government can demand users' information. Given the volume of content removal requests from Pakistan, it may not be possible for Internet companies to comply with these tight deadlines. Here, they face the risk of fines of up to US\$3 million in case of non-compliance, along with the possibility of platform suspension. Moreover, the Online Content Rules also require Internet companies to open local offices, although there is no prescribed timeline for this. However, companies need to appoint local grievance and compliance officers, based in Pakistan, by January 2022. In case of non-compliance with government directives, these officers could personally be held face liable and may face criminal proceedings accordingly. Under PECA, it is mandatory for telecom and Internet service providers to retain traffic data for at least 90 days. However, the law does not define any process to safeguard this data from theft or misuse. Therefore, PECA actually weakens Pakistan's data protection regime. It also increases Internet companies' compliance costs for the extended duration for this data's storage.

Pakistan's PDPB provides for separate treatment of 'sensitive personal data' and 'critical personal data'. Critical personal data' is left to be classified by the Personal Data Protection Authority of Pakistan. Under Section 14 of the draft bill, critical personal data cannot be transferred outside Pakistan. Section 3 of the bill also provides that the bill will have extra-territorial application. Moreover, data processors such as internet companies are required to nominate a representative in Pakistan. Section 24 of the bill mandates data controllers, including Internet companies, to disclose the data of an individual if required in public interest. Lastly, Internet companies can only transfer data outside Pakistan to jurisdictions that have similar data protection regimes. Collectively, this has significant implications for Internet companies. It puts at risk the privacy of their users' data. The requirements to process data locally require investing in local infrastructure to be set up such as data centers and local offices, increasing operational costs. Lastly, transfer of data to only similar jurisdictions increases cross-border data flow barriers.

Vietnam

In Vietnam, if draft decrees are passed, the risks for content moderation and data privacy and localisation are high. The implications for Internet companies operating in Vietnam are as follows:

- (a) Increase in operation costs for compliance (data localisation, licenses and administrative processes)
- (b) Reputational concerns due to compliance with content moderation
- (c) Possible ban or suspension in case of non-compliance
- (d) Cybersecurity concerns with data localisation requirement
- (e) Infeasibility of implementation and uncertainty around implementation decrees

At the top of Internet companies' concerns are the increased operation costs for compliance. Data localisation could mean that companies rent data storage centres and open local offices which increases costs significantly. Moreover, businesses' competitive edge will be affected. If forced to localize data, companies will be unable to use technologies like cloud services that may increase competitiveness. According to the European Centre for International Political Economy, the costs of data localisation (Decree 72 in 2013) on Vietnam was estimated at -1.7% GDP loss and reduced domestic investment by 3.1%.

The proposed requirements for licenses and registration also add to administrative and cost burdens. Content hosting companies will have to apply for licenses from the Ministry of Information and Communications (MIC) to continue provision of social media services. Companies dealing with sensitive personal data must register with the Personal Data Protection Committee (PDPC).

Another strong implication from the high data privacy/localisation risk is companies may be unable to move data out of the country. In addition to affecting the day-to-day operations, this impedes the data flow and product interoperability for businesses' global operations. Companies will find it difficult to operate in Vietnam.

Moreover, the infeasibility of implementation of the regulations creates uncertainty. For example, seeking approval for every cross-border transfer of data as proposed in the PDPD was described by interviewees as extremely cumbersome. While draft regulations are in place, great uncertainty surrounds implementation decrees, especially since as one interviewee puts it, *“In Vietnam, what is written in the law is not how it is practiced.”* The requirement to open local offices brings liability risks. Internet company officials have privately expressed concerns that setting up local data centers and offices could make it easier for the authorities to seize customer data and expose local employees to the threat of arrest.

Companies face reputational risks in complying with the regime’s content removal requests. Internet companies have come under criticism by civil organizations like human rights organizations for being complicit in censorship in the past. With the new regulations, content hosting companies must make private user data available to the Vietnamese authorities who can access that data for law enforcement and surveillance purposes. Firms like Facebook and Google will have to hand over user data suspected of anti-state activity if requested by the government. They might violate their own terms of service on protecting user privacy. Failing to comply may incur fines or suspension up to 2 years (Article 3.2 of Decree 15). The government has also threatened to ban Internet companies before.

Finally, cybersecurity risks accrue with the data localisation requirement. Data localisation increases vulnerability to cybersecurity incidents and compromises the safety of user data. The US Embassy in Hanoi issued a statement that said the law “may present serious obstacles to Vietnam’s cybersecurity”.

Indonesia

The implications for Internet companies operating in Indonesia are as follows:

- (a) Indonesian authorities can access Internet companies’ servers and user information for surveillance purposes under MR5
- (b) High compliance challenges for content moderation requirements
- (c) Hefty financial penalties and platform suspension/ ban for non-compliance

(d) Lack of clarity on cybersecurity regulations creates business uncertainty

Firstly, MR5 allows the Indonesian authorities to gain access to Internet companies' systems and user information for surveillance purposes, potentially compromising users' personal data. Under MR5, authorities can use data collected by digital platforms to track down further information (i.e., newfound "prohibited content") to criminalize a person. This provision bypasses relevant procedures in protecting private data. According to the Southeast Asian Freedom of Expression Network (SAFE-net), MR5 might subvert provisions in the draft Personal Data Protection Bill, including ideas of establishing an Independent Commission on Data Protection operating outside the government.

Secondly, there are huge challenges for Internet companies for compliance with content moderation requirements due to (i) broad and discretionary considerations that allow the government to put up content removal requests, (ii) licensing requirements for Internet companies², and (iii) short turnaround time for content takedown (e.g., 24 hours for routine requests and 4 hours for urgent prohibited content such as child pornography, terrorism and content that causes public unrest). Due to the broad definition of prohibited content³, information might be deemed to violate regulations due to its potential to disrupt public order. This ambiguity might encourage self-censorship by Internet companies, where they independently take down content that fits the government's pattern to avoid dealing with unrealistic time frames for takedowns. MR5 also does not provide clear means for Internet companies to contest content takedowns.

There are also hefty financial penalties and platform suspension/ban for non-compliance, particularly for content moderation regulations. Sanctions include warning letters, temporary suspension, administrative penalty, revocation of registration certificate, and blocking of access

² Indonesia requires all private electronic systems operators, including Internet companies with content hosting platforms, to apply for a licence from MCI. Failure to do so can lead to the blocking of the entire platform.

³ Under Indonesia's MR5, companies are required to ensure that their platforms do not facilitate the distribution of prohibited content which "violates Indonesian law", "promotes social anxiety and disrupts public order" or "informs methods or provides access towards prohibited electronic information and/or documents".

to company's platform(s). In July 2017, Indonesia had banned Telegram over concerns of facilitating terrorism activities.

Lastly, existing cybersecurity regulations do not cover requirements on security of information and network infrastructure, and cybersecurity certifications for human resources. The lack of clarity on cybersecurity regulations is not favorable for Internet companies as it creates business uncertainty.

Singapore

The implications for Internet companies operating in Singapore are as follows:

- (a) Compliance and reputational risks due to content moderation regulations
- (b) High financial penalties for non-compliance of content moderation and data protection regulations
- (c) Cybersecurity obligations to strengthen critical information infrastructure

Both POFMA and FICA create compliance and reputational risks for content hosting platforms. There are a wide range of powers available to the Singapore government to restrict, remove, and block content access. In addition, there are also requirements to disclose user information, which may contravene privacy considerations. However, the risks are moderate because the fines are not as hefty as in Vietnam or Pakistan. Additionally, there is no history of repeatedly banning platforms. This is also echoed by one of our interviewees who stated that, *"Singapore is still very business friendly, they're extremely concerned about making sure that whatever policies that they've put out, don't affect the ease of innovation or ease of doing business in Singapore. A lot of their policies have been predominantly motivated by content, like online falsehoods and fake news. So, content moderation focused on concerns around the propagation of fake information like bad health advice to scams"*.

There are relatively high financial penalties for non-compliance with content moderation and data protection regulations. For contravention of content moderation regulations such as POFMA and FICA, the financial penalties are up to S\$500,000 (approximately US\$370,000) and S\$1 million

(approximately US\$740,000). Under the enhanced financial penalty regime for data protection, the Personal Data Protection Commission (PDPC) is allowed to impose financial penalties of up to 10% of the corporation's annual turnover in Singapore or S\$1 million, whichever is higher, with effect from 1 February 2022.

Singapore is the only country with consolidated and enforced cybersecurity regulation. Internet companies face more compliance costs in this area. The Cybersecurity Act (2018) imposes cybersecurity obligations on Internet companies deemed as CII. It allows the commissioner to demand data or seize computers from companies. CII owners must comply with codes and directions, and report cybersecurity incidents. They are also required to conduct regular audits and risk assessments for cybersecurity vulnerabilities. This will increase costs to CII owners associated with the implementation of various security solutions to strengthen CII and safeguard sensitive data. Failing to comply brings significant criminal and civil penalties like fines not exceeding \$100,000 and/or 2 years imprisonment.

Ultimately, the evolving regulations pose challenges to Internet companies. They must choose between staying in the markets and dealing with regulatory uncertainties or exiting them. While the risks are high, we recommend that internet companies do not exit these markets. Rather, they should focus on risk adaptation and reduction by strengthening the government affairs and public policy strategies for each of these jurisdictions.

RISK MITIGATION STRATEGIES

The risk mitigation strategies for all four jurisdictions are focused on improving government affairs and public relations initiatives with key stakeholders. The stakeholder mapping methodology is appended in [Annex E](#). Internet companies should engage external stakeholders to mitigate the risks and adapt their internal processes to these changing regulations.

Pakistan

The key stakeholders that internet companies should consider engaging with in Pakistan are indicated in [Figure 3](#). **One strategy that has been successful in the past is for Internet companies to present a united front while advocating for regulatory changes.** This helped roll back the Online Content Rules in 2020 as well. Internet companies can collectively continue to emphasize that the new regulations do not make it feasible to continue operations in Pakistan, particularly the requirements to open local offices. Over here, **advocacy through the Asia Internet Coalition (AIC) has been successful in the past, as its recommendations on various regulations were carried widely in the national media.** The AIC is also invited to regulation consultations with the policymakers on regulations as a representative of the Internet companies.

Internet companies should also cultivate allies within the government who hold high influence.

There are two key players to consider within this context. Firstly, the current Federal Information Minister Fawad Chaudhary, who has publicly spoken out against increased Internet regulation and deteriorating relations with Internet companies as harmful to Pakistan's digital economy. Secondly, the National Security Advisor, who has been recently appointed as the head of the National Social Media Consultation Working Group, a body that reports to the Prime Minister on improving relations with Internet companies. In their interactions with these officials, Internet companies should emphasize the threat current regulatory trends hold for Pakistan's image as a business-friendly destination.

There is wide-ranging low tolerance for blasphemous content in Pakistan. Influential policymakers have actively encouraged online campaigns against blasphemy. The similar attitude can be seen in the country's judiciary as well, which has repeatedly taken notice of blasphemous content online, and threatened to ban Internet companies for. It is essential for Internet companies to actively filter blasphemous content through enhanced artificial intelligence solutions if they want to continue hassle-free operations in Pakistan.

Internet companies should cultivate the local digital rights ecosystem to encourage strategic litigation against new regulatory provisions. The judiciary is a key player in Pakistan, where petitions by civil society organizations such as *Bolo Bhi* and the *Digital Rights Foundations* saw government directives overturned by courts. Here, the Islamabad High Court is particularly relevant, and has continued to evolve progressive jurisprudence on Internet regulation in Pakistan. Internet companies can fund digital rights initiatives with the organizations, which not only emphasize self-regulation by internet users, but also afford entry-point to raise petitions in court against unfavorable Internet regulations.

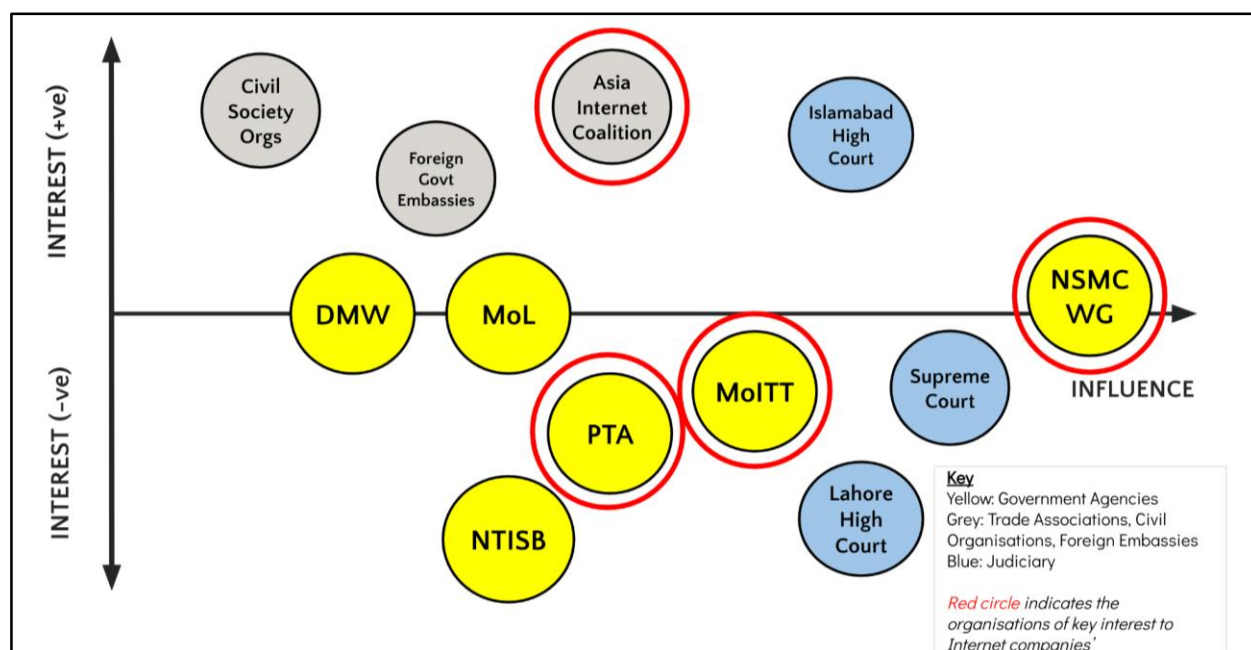


Figure 3: Stakeholder Mapping - Pakistan

(DMW: Digital Media Wing, MoL: Ministry of Law, NTISB: National Technology Infrastructure and Safety Board, PTA: Pakistan Telecommunication Authority, MoITT: Ministry of Information Technology and Telecommunication, NSMCWG: National Social Media Consultation Working Group)

Vietnam

Vietnam poses more of a challenge as it is not as easy to influence. The Ministry of Information and Communications (MIC) and the Ministry of Public Security (MPS) are the main policymaking bodies (see [Figure 4](#)). Unlike other countries, the Vietnam communist party is firmly in power, and the policymaking and legislative drafting process is very opaque. Neither civil society nor think tanks are strong. The most effective channels are embassies as well as chambers of commerce and associations. The government would be most responsive to only two things—diplomatic pressure and foreign direct investment.

First, **leveraging pressure from other governments** is very useful. For example, the US or European government may exert pressure on the Vietnamese government to not put out laws

that are not business friendly. Our interviewee shared that sometimes, the Vietnamese government will consult solely with embassies but not with any companies or other organizations or associations. Hence, they cannot push their agendas as they may not have sight of these consultations. Internet companies should ensure that Internet regulation is a part of the bilateral engagement agenda between their embassies and Vietnam, with consistent messaging against increasing cross-border data barriers.

Second, **advocacy through the AIC can have an impact as well**. The AIC has high interest alignment as it represents Internet companies and is highly influential as it has been consulted by the government when drafting laws. It should be engaged to rollback implementation of unfavorable regulations like data localisation.

On the Law on Cybersecurity, our interviewee from AIC said, *“The fact that we’ve been able to stall it has been great. It’s a huge win. And it’s not just AIC that did this...we had a big group of industry players... we work with the US Embassy, the Canadian Embassy. The New Zealand embassy was involved. It was a real big global thing.”*

Business councils and associations like US-ASEAN and **chambers of commerce** like AmCham and EuroCham are highly influential and accessible. They compile feedback on draft regulations and regularly organize meetings for which ministry representatives attend. Companies can channel comments through them and emphasize the need for global best practices and standards.

The motivations of the Vietnam government are to promote economic growth and investments. The **Vietnam Chamber of commerce** is open to foreign trade and investment and is a useful channel to give feedback on unfavorable laws to businesses, including on the digital economy. One interviewee described that it “acts as a bridge between the Vietnam business community to the government.” Companies should **advocate with the Ministry of Information and Communications (MIC)** as it appears more business friendly compared to the other key stakeholder of the Ministry of Public Security (MPS). Our interviewees noted tensions between

these two ministries with the MIC more outward looking while the MPS is driving the stricter regulations agenda to guard the regime's security concerns. Companies should emphasize the aligned objectives with the MIC in growing the digital economy.

Finally, Internet companies can **develop the digital ecosystem by supporting local SMEs**. Companies can increase the MIC's influence as a champion of their viewpoints by emphasizing the growth potential in the digital economy. As the government seeks to promote the domestic market and boost the local players in the digital economy, supporting the growth of SMEs will demonstrate to the government long-term commitment to the market. This can help build local partnerships and goodwill.

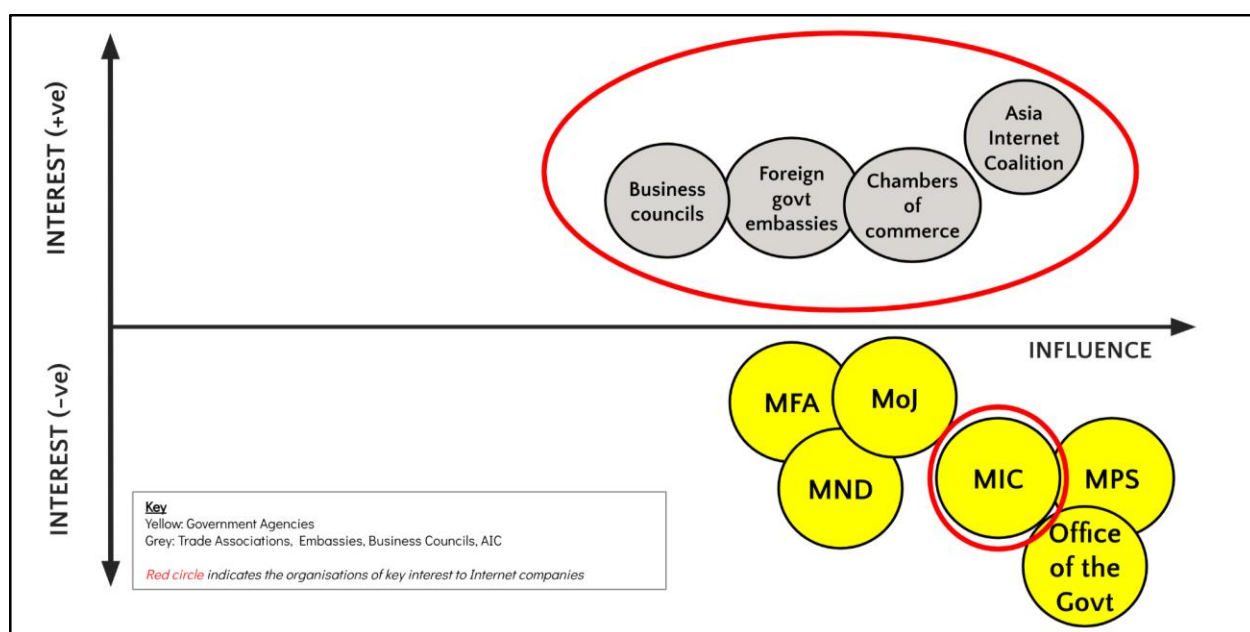


Figure 4: Stakeholder Mapping - Vietnam

(MFA: Ministry of Foreign Affairs, MoJ: Ministry of Justice, MND: Ministry of National Defence, MIC: Ministry of Information and Communications, MPS: Ministry of Public Security)

Indonesia

The main policy-making body for Internet regulations in Indonesia is the MCI. Civil society organizations, think tanks, and business councils are also effective channels in Indonesia (see [Figure 5](#)). Improving the business-friendly climate is a key driving factor to influence Internet

governance policy making in Indonesia. The current administration under President Joko Widodo has rolled out plans⁴ to accelerate the implementation of the digital economy and improve the perception of Indonesia as a major investment destination in Southeast Asia.

Firstly, **Internet companies should cultivate both MCI and Badan Koordinasi Penanaman Modal (BKPM), the investment coordinating board in Indonesia, as allies.** These two government bodies have high influence on Internet governance policymaking and are relatively accessible for Internet companies. MCI is open to engage with Internet companies through meetings and public consultations. On the other hand, BKPM is closely aligned with Internet companies' interests as the agency seeks to accelerate the growth of Indonesia's economy and is opposed to increased regulations that hinders market entry and access. **It is important to engage MCI and BKPM on upcoming cybersecurity regulations, as Badan Siber dan Sandi Negara⁵ (BSSN), the national cybersecurity agency, wields low accessibility.** BSSN had previously introduced a cybersecurity bill without properly consulting the private sector or the relevant ministries. This cybersecurity bill was withdrawn from the parliament agenda back in 2020, as it contained provisions which were cumbersome and costly for businesses, requiring certifications, accreditations, and approvals from BSSN. Thus, Internet companies can engage MCI and BKPM to provide input and highlight that *cybersecurity requirements should be carefully scoped to strike a balance between industry development and cybersecurity needs.*

A possible way for Internet companies to coalesce BKPM and MCI could be funding digital initiatives which improve the ICT infrastructure and Internet ecosystem for Indonesia's booming tech scene. This will help to enhance the influence of a coalition of ministries that opposes increased regulation vis-à-vis the President.

⁴ Omnibus law was enacted on 2 November 2020, to amend or revoke 78 existing laws and introduce new provisions with the aim of increasing investment, improving business licensing processes, and eliminating regulations that hinders investment across various sectors. Under the Omnibus law, Internet service providers are allowed to have 100% foreign shareholding instead of its original 68%.

⁵ BSSN reports directly to Indonesia's President.

Secondly, **Internet companies can advocate for their interests through Elsam, a civil society organization.** Elsam has a relatively high influence on Internet governance policymaking as it is often invited for focus group discussions with the government. Its interests are also largely aligned with Internet companies.

Centre for Strategic and International Studies (CSIS) is a think tank which has ties with ex-Indonesian political figures. **Internet companies can consider collaborating with CSIS to conduct workshops on cybersecurity best practices and sponsor research fellowships on Internet governance.** CSIS is viewed favorably by the Indonesian government, and President Joko Widodo had recently commended CSIS for its instrumental role in educating the nation and improving quality of policies in the country.

Lastly, **AmCham and US-ASEAN business councils are common channels that Internet companies can use to influence policymaking.** They can influence Indonesia's business friendly perception and emphasize that increased regulations that impose high compliance costs for Internet companies are not favorable for Indonesia's digital economy development.

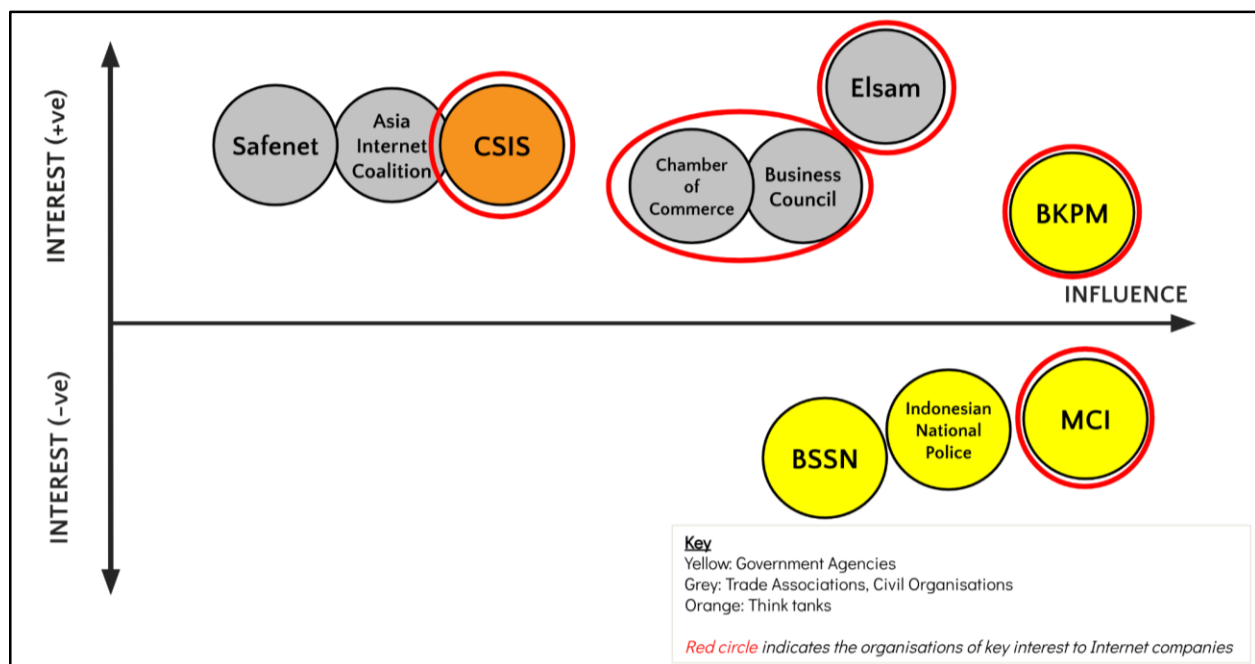


Figure 5: Stakeholder Mapping - Indonesia

(SAFEnet: Southeast Asia Freedom of Expression Network, CSIS: Centre for Strategic and International Studies, Elsam: Lembaga Studi dan Advokasi Masyarakat, BKPM: Badan Koordinasi Penanaman Modal, BSSN: Badan Siber dan Sandi Negara)

Singapore

The main policy-making body for content moderation and data privacy and localisation regulations in Singapore are the Ministry of Communication and Information (MCI) and its statutory board, the Infocomm Media Development Authority (IMDA). The regulatory authority responsible for administering and enforcing the PDPA is the Personal Data Protection Commission (PDPC) under the IMDA. The cybersecurity regulations are governed by the Cybersecurity Agency of Singapore (CSA).

There is a smaller set of stakeholders identified for Singapore (see [Figure 5](#)). The AIC, trade associations, chambers of commerce and business councils (e.g., Singapore Business Federation) have aligned interests with Internet companies.

Firstly, **Internet companies can directly approach the IMDA, as it has moderately high influence for Internet governance policymaking.** IMDA carries out regulatory and industry development functions and is highly accessible and open to engagement. It also frequently seeks input from the private sector and academia before introducing data protection and cybersecurity regulations. For content moderation, since the law does not prescribe specific timelines for content removal, it is best to continue engaging with the IMDA to emphasize when content takedowns are feasible within the duration required by the regulator. As Singapore prides itself as a business-friendly country, the key message that should be emphasized is that imposing unfavorable regulations could affect perceptions of Singapore as a global hub. On cybersecurity, the CSA is also a government agency open to private sector feedback.

Secondly, **Internet companies may work with AIC, trade associations, chambers of commerce and business councils who are often invited by the government for feedback.** Via these channels,

companies can approach IMDA and CSA as a group to voice their views on certain regulations collectively. This will allow Internet companies to have a bigger sway on policy reviews.

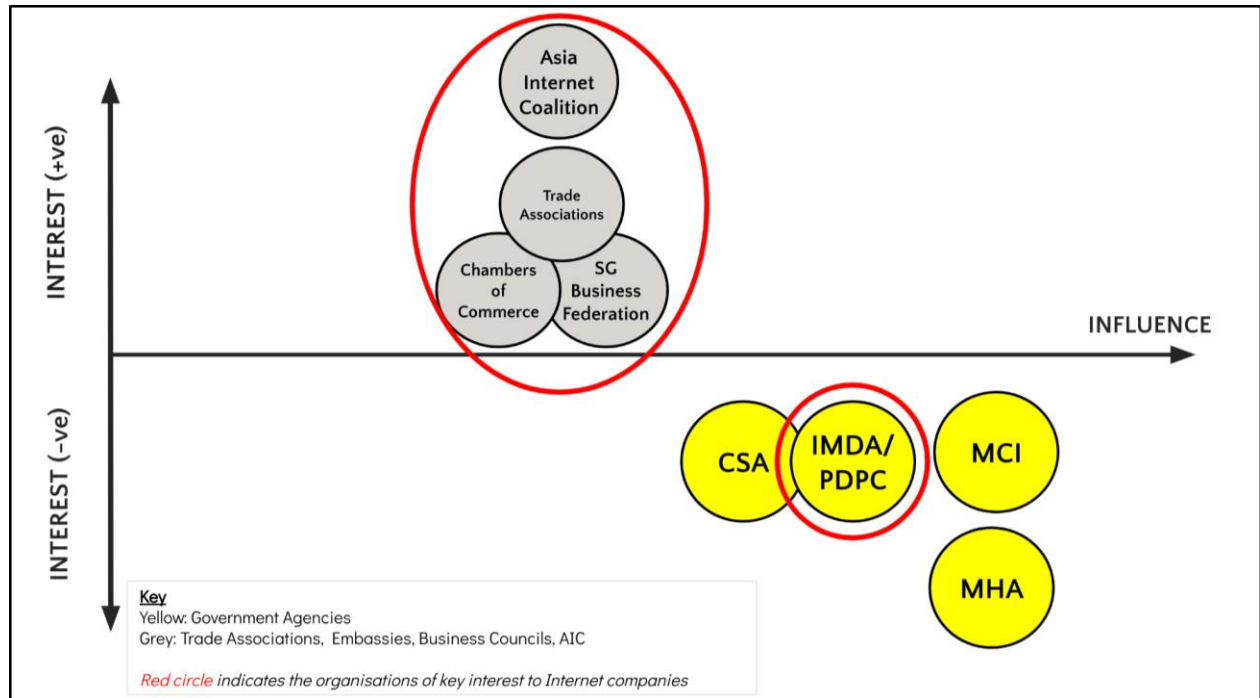


Figure 6: Stakeholder Mapping - Singapore

(CSA: Cyber Security Agency of Singapore, IMDA: Infocomm Media Development Authority, PDPC: Personal Data Protection Commission, MCI: Ministry of Communication and Information, MHA: Ministry of Home Affairs)

FORWARD LOOK: CONTAGION EFFECT

Although a range of domestic factors affect countries' regulatory frameworks for Internet governance, international factors can also play a role. This can be observed where a particular jurisdiction takes the lead in regulating one aspect of Internet governance, and a few others seem to follow. Dubbed as the *Contagion Effect*, the phenomenon is a cross-border factor in influencing development of regulatory frameworks. Based on our analysis, three factors determine this contagion effect.

Domestic Political Factors

The influence of domestic political factors can be particularly observed in the aftermath of the allegations against Russia for manipulating content hosting platforms in the 2016 Presidential elections for the United States of America. To curb 'fake news' as well as online hate speech, Germany took the lead by enacting the Network Enforcement Act or *NetzDG*. The law not only poses intermediary liability on content hosting platforms to monitor hate speech, but also curb fake news. Several other jurisdictions, realizing the adverse consequences content manipulation can have, picked up on Germany's approach by enacting similar laws, leading to a domino effect. This includes at least 13 other countries which have adopted frameworks like Germany's *NetzDG*, including Singapore, Vietnam, Malaysia, and India in Asia.

Commercial Factors

Another key determinant of the contagion effect is the commercial factor. This can particularly be observed in the case of the GDPR, which stipulates that the data for European citizens can only be transferred and processed to jurisdictions which have similar data privacy regulations. Several countries, including Pakistan and India, have now either enacted or are in the process of developing laws like the GDPR just so they can process European users' data, which remains integral to the development of their digital economy. In some cases, the GDPR is adopted without much regard to the country's own policy context. An interviewee who is a public policy professional from an Internet company said, "*Even if they did a good carbon copy of GDPR, we*

often tell governments that GDPR is extremely expensive legislation for a regulator to try and enforce, and for companies to comply with. So, if you're doing this for the first time that you want to encourage the digital economy, GDPR is not a very business friendly approach to doing it and it's also very taxing on the regulator." Such policy practices, i.e., wholesale adoption of policies, are unfavorable for both the country and Internet companies operating within the jurisdiction.

Trendsetting Jurisdictions

Some countries are seen as the leaders in pushing the frontiers of Internet regulation, which other jurisdictions tend to follow. For example, our interviewees cited Australia as a country that is constantly evolving its regulatory frameworks for Internet companies, particularly content hosting platforms, which countries in Southeast Asia tend to follow.

There are two developments that will have adverse contagion effects for content hosting platforms, which we recommend to look out for. The first is South Korea's recent law on payments for digital solutions enacted in August 2021. The legislation allows users to avail alternative payment mechanisms offered by content hosting platforms for in-app purchases. These purchases are a significant source of revenue for app sales platforms and will adversely affect revenue streams. We see this as part of a broader trend in Asia to increase taxation and revenue sharing for tech companies, including new regulation by Australia. The trend will pick-up because these two jurisdictions are seen as leaders on Internet governance in Southeast Asia, which other countries can emulate.

The second development is India's new intermediary liability rules, which reverses hard-fought gains for intermediary protection. Internet companies' compliance to these rules will be closely observed in Pakistan, which has recently approved similar content moderation rules. Pakistan's regulation also includes designation for '*Significant Social Media Companies*', appointment of compliance officers and due diligence on problematic content. In fact, its approval for these content rules, even though there was initial push back against them, seem to be spurred by Internet companies' compliance to India's new intermediary liability rules.

CONCLUSION

The growth potential of the digital economy in Asia is immense, and Internet companies stand to capitalize on a digital economy that could be worth more than US\$300 billion⁶ by 2025. Vietnam and Indonesia's digital economies are expected to grow by double digits to US\$52 billion and US\$124 billion by 2025. Thus, Internet companies should seek to adapt and reduce various areas of internet governance based on individual countries' political and regulatory contexts.

For data privacy and localisation, as well as cybersecurity, Internet companies could adopt risk reduction strategies that focus on engagements with key stakeholders to influence the policy-making process, especially for laws that are under deliberation. As for content moderation, given that it is commonly used by most Asian countries to ensure political stability, Internet companies could adopt risk adaptation strategies to comply with the existing regulations. At the same time, Internet companies could also engage with key stakeholders to share their concerns and call on the government agencies to review existing policies and/or provide special consideration. The introduction of initiatives that develop the digital ecosystem and promote digital inclusion within a country will not only boost the local economy and improve its standing with the government, but also firm up the Internet company's image as a thought leader in driving digital innovation.

Going forward, Internet governance will likely continue to be a key policy mandate in many countries. Thus, it is imperative for Internet companies to enhance their forward-looking risk identification and assessment strategies by monitoring international regulatory developments which could trigger a contagion effect on countries.

⁶ US\$300 billion is the estimated value of Southeast Asia's digital economy growth, and this figure is obtained from Google, Temasek and Bain & Company's 2020 report. Thus, the estimated value of the digital economy in Asia is more than US\$300 billion.

ABOUT THE AUTHORS

		
Muhammad Saad Master in Public Policy, LKYSPP 2020/2022	Ho Xian Xi Karen Master in Public Policy, LKYSPP 2020/2022	Jiahui Tan Master in Public Policy, LKYSPP 2020/2022

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